

Mehtab Khan vs State & Anr on 8 August, 2017

Author: Pushpendra Singh Bhati

Bench: Pushpendra Singh Bhati

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Misc(Pet.) No. 3192 / 2015

1. Mehtab Khan s/o Sh.Bhure Khan
2. Moinudeen Khan s/o Sh.Bhure Khan
3. Shakoor Khan s/o Sh.Bhure Khan
All petitioners are b/c Sindhi Musalman and r/o Sindhiyon Ka Bas,
Siwanchi Gate, Jodhpur (Raj.).

----Petitioner

Versus

1. State of Rajasthan
2. Kaleem Ansari s/o Sh. Ramjanji, b/c Musalman, r/o
Saudagaran, Behind Oswal Nyati Nohra, Jodhpur (Raj.).

---Respondent

For Petitioner(s) : Mr.Vineet Jain

For Respondent(s) : Mr.V.S.Rajpurohit PP for the State.
Mr.Rajesh Shah, Mr.Pankaj Gupta

HON'BLE DR. JUSTICE PUSHPENDRA SINGH BHATI

Order Reserved on 04/08/2017 Pronounced on 08/08/2017

1. This criminal misc. petition under Section 482 Cr.P.C.

has been preferred for quashing FIR No.456/2012 dated 12.12.2012 registered at Police Station, Udaimandir, Jodhpur and all consequential proceedings pursuant to the FIR for the offences under Sections 420, 406, 467, 468, 471 and 120B IPC.

2. A complaint was filed by respondent No.2, which was forwarded under Section 156(3) Cr.P.C., whereupon FIR No.456/2012 was registered at Police Station, Udaimandir, (2 of 11) [CRLMP-3192/2015] Jodhpur. The allegations were that the complainant's Firm, namely, 'M/s.Darpan Engineers' was allotted an industrial plot in Boranada Industrial Area on 21.08.1993. The complainant raised some construction and started operating his Firm after installing some machinery. However, since he was not doing well in the business, he took help of one Shaukat Khan and rented him the said plot. The rent was to be paid to Rajasthan Financial Corporation in lieu of the loan taken on account of installation of the machinery. After Shaukat Khan expired in the year 2010, the complainant came to know that the name of the Firm has been changed to 'Nasrani Steel', and the land had been usurped by means of a forged partnership deed dated 28.02.1996, in which the accused persons have posed themselves as partners, and vide another agreement dated 30.04.1996, the retirement deed of the complainant dated 22.05.1996 was also signed.

3. Initially, a negative final report was filed by the concerned investigating authority. During investigation, a compromise was arrived at between both the parties, which is on record as Annexure-1. On account of the said compromise, anticipatory bail was granted to the present accused by a coordinate Bench of this Court on 07.10.2015 in S.B.Criminal Misc.

Bail Application No.8259/2015, relevant portion of which reads as under:-

"i{kdkjku ds fo}ku vf/koDrkx.k dk dFku gS fd i{kdkjku ds e/; jkthukek gks x;k gS rFkk mUgksaus vkilh fookn lqy>k fy;k gSA lqk x;kA i{kdkjku ds fo}ku vf/koDrkx.k ds dFkuksa ij fopkj fd;k x;kA ekeys ds rF;ksa ,oa ifjLFkfr;ksa ij fopkj fd;k x;kA i{kdkjku ds e/; vkilh jkthukek gks tkus ds rF; dks ns[krs gq,] bl (3 of 11) [CRLMP-3192/2015] U;k;ky; dh jk; esa izkFkhZ dh vksj ls izLrqr vfxze tekur izkFkZuk i= Lohdkj fd;s tkus ds mfpr vk/kkj miyC/k gSA "

4. Learned counsel for the petitioner drew the attention of this Court towards para No.2 of the compromise, in which it was written that complete loan has been discharged by the accused and the complainant shall not pursue the FIR in question and the complainant shall make all necessary efforts to close the FIR, in accordance with the said compromise arrived at between the parties. It was also stated in the compromise that for such compromise, an amount of Rs.15,00,000/- had been paid to the complainant, out of which Rs.13,00,000/- was paid through Demand Draft No.018069 dated 08.09.2015 of Central Bank of India, Jalori Gate Branch, Jodhpur and Rs.2,00,000/- in cash. The reference of the said compromise also finds place in the aforementioned order.

5. Learned counsel for the petitioner has relied upon the judgment rendered by this Court in Siddarth Mogra Vs. State of Rajasthan & Anr., (S.B.Criminal Misc. Petition No.3144/2014 decided on 25.07.2017), which reads as under:-

"1. Petitioner has preferred this misc. petition under Section 482 of Cr.P.C. for quashing of proceedings pertaining to Regular Criminal Case No.89/2011 pending trial before the learned Additional Chief Judicial Magistrate No.2, Udaipur for offence punishable under Sections 498A, 406 IPC arisen out of FIR No.79/2010 of police Station Mahila Thana, Udaipur.

(4 of 11) [CRLMP-3192/2015]

2. The brief facts of the case are that the petitioner and respondent No.2 were married on 13.02.2005. The present FIR was registered on 25.08.2010. The disputes between the parties were resolved by an agreement dated 12.04.2012. The agreement dated 12.04.2012 culminated into payment of permanent alimony of Rs.10,00,000/- and a decree of divorce by mutual consent under Section 13 (B) on 18.12.2012.

3. Counsel for the petitioner states that thus, the parties had entered into a compromise and the chain of events clearly indicate that criminal complaint

surviving against the present petitioner is abuse of process of law. Counsel for the petitioner has further pointed out from the agreement in which condition No.8 clearly stipulate the withdrawal of the present criminal proceedings.

4. Learned counsel for the petitioner has relied upon the judgment of Ruchi Agarwal Vs. Amit Kumar Agrawal & Ors. Reported in 2005 Supreme Court Cases (Cri) 719, the relevant portion of this judgment which is as follows :-

" (5) In the compromise petition, referred to herein above, both the parties had agreed to withdraw all the civil and criminal cases filed by each against the other. It is pursuant to this compromise, the above divorce as sought for by the appellant was granted by the husband and pursuant to the said compromise deed the appellant also withdrew Criminal Case No.63 of 2002 on the file of the Family Court, Nainital which was a complaint filed under Section 125 of the Criminal Procedure Code for maintenance. It is on the basis of the submission made on behalf (5 of 11) [CRLMP-3192/2015] of the appellant and on the basis of the terms of the compromise, said case came to be dismissed.

However, so far as the complaint under Sections 498A, 323 and 506IPC and under Sections 3 and 4 of the Dowry Prohibition Act is concerned, which is the subject matter of this appeal, the appellant did not take any steps to withdraw the same. It is in those circumstances, a quashing petition was filed before the High Court which came to be partially allowed on the ground of the territorial jurisdiction, against the said order the appellant has preferred this appeal.

(6) From the above narrated facts, it is clear that in the compromise petition filed before the Family Court, the appellant admitted that she has received Stridhan and maintenance in lump sum and that she will not be entitled to maintenance of any kind in future. She also undertook to withdraw all proceedings civil and criminal filed and initiated by her against the respondents within one month of the compromise deed which included the complaint under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of Dowry Prohibition Act from which complaint this appeal arises. In the said compromise, the respondent- husband agreed to withdraw his petition filed under Section 9 of the Hindu Marriage Act pending before the Senior Judge, Civil Division, Rampur and also agreed to give a consent divorce as sought for by the appellant.

(7) It is based on the said compromise the appellant obtained a divorce as desired by her under Section 13(B) of the Hindu Marriage Act and in partial compliance of the terms of the compromise she withdrew the criminal case filed (6 of 11) [CRLMP-3192/2015] under Section 125 of the Criminal Procedure Code but for reasons better known to her she did not withdraw that complaint from which this appeal arises. That apart after the order of the High Court quashing the said complaint on the ground of territorial jurisdiction, she has chosen to file this appeal. It is in this background, we will have to appreciate the merits of this appeal.

(8) Learned counsel appearing for the appellant, however, contended that though the appellant had signed the compromise deed with the above-mentioned terms in it, the same was obtained by the

respondent-husband and his family under threat and coercion and in fact she did not receive lump sum maintenance and her Stridhan properties, we find it extremely difficult to accept this argument in the background of the fact that pursuant to the compromise deed the respondent-husband has given her a consent divorce which she wanted thus had performed his part of the obligation under the compromise deed. Even the appellant partially performed her part of the obligations by withdrawing her criminal complaint filed under Section 125. It is true that she had made a complaint in writing to the Family Court where Section 125 Cr.P.C. proceedings were pending that the compromise deed was filed under coercion but she withdrew the same and gave a statement before the said court affirming the terms of the compromise which statement was recorded by the Family Court and the proceedings were dropped and a divorce was obtained. Therefore, we are of the opinion that the appellant having received the relief she wanted without contest on the basis of the terms of the compromise, we cannot now (7 of 11) [CRLMP-3192/2015] accept the argument of the learned counsel for the appellant. In our opinion, the conduct of the appellant indicates that the criminal complaint from which this appeal arises was filed by the wife only to harass the respondents.

(9) In view of the above said subsequent events and the conduct of the appellant, it would be an abuse of the process of the court if the criminal proceedings from which this appeal arises is allowed to continue. Therefore, we are of the considered opinion to do complete justice, we should while dismissing this appeal also quash proceedings arising from the Criminal Case No.Cr.No.224/2003 registered in Police Station, Bilaspur, (Distt.Rampur) filed under Sections 498A, 323 and 506 IPC and under Sections 3 and 4 of the Dowry Prohibition Act against the respondents herein."

5. Learned counsel for the respondents has stated that certain aspects of the matter were not complied by the petitioner himself as he has not withdrawn a case which was mentioned on page 6 of the agreement i.e. a protest petition against an FR pending before Additional Chief Judicial Magistrate No.2, Udaipur. Counsel for the petitioner has further argued that complainant is a lady and was persuaded and dragged into the compromise and therefore, the present proceedings ought not to be interfered with.

6. After hearing counsel for the parties and perusing the record of the case, this Court is of the opinion that once a compromise has been arrived between the parties on 12.04.2012 and the terms of the compromise include bringing an end to proceeding of the present Regular Criminal (8 of 11) [CRLMP-3192/2015] Case No.89/2011 pending before the learned Additional Chief Judicial Magistrate No.2, Udaipur and that compromise was acted upon the between the parties which resulted into payment of Rs.10,00,000/- as permanent alimony and also the divorce petition by mutual consent in which the decree was granted on 18.12.2012 then it was not open for the respondent to step back and say that she was dragged into the compromise. The complainant is an educated lady who has with open eyes accepted the terms of compromise so as to bring the present proceedings to an end and the petition seeking divorce by mutual consent remained pending for about six months and later on was decreed which shows that the application of mind was there by both the parties for parting ways by mutual consent.

7. In light of the discussion and precedent law cited at this Court, the present misc. petition is allowed and entire proceedings pertaining to Regular Cr. Case No.89/2011 (State Vs. Siddarth) pending trial before the learned Additional Chief Judicial Magistrate No.2 Udaipur are quashed and set aside.

8. It is however made clear that in case any proceeding is being persuaded by the petitioner against the respondent contrary to the terms of the agreement dated 12.04.2012 then the petitioner shall be required to bring those proceedings to an end. We record undertaking of the counsel for the petitioner to abide by the same."

6. Learned counsel for the respondent has stated that since the compromise is not agreeable to the respondent, (9 of 11) [CRLMP-3192/2015] therefore, the same cannot be acted upon. Learned counsel for the respondent further stated that the petitioner has committed a fraud upon the complainant, and thus, there is no question of entering into any kind of compromise.

7. Learned counsel for the respondent however, could not deny the aforementioned order passed by a coordinate Bench of this Court passed in the aforesaid anticipatory bail application, wherein the fact of compromise between the parties was mentioned, while granting indulgence to the present petitioner.

Learned counsel for the respondent also candidly admitted the fact of receiving a total amount of Rs.15,00,000/- by the respondent through the aforementioned demand draft and in cash, but he has stated that the amount was not received for entering into the compromise. The said amount of Rs.13,00,000/- has been paid through Demand Draft No.018069 dated 08.09.2015 on account of due rent.

8. Learned counsel for the respondent has placed reliance on the precedent law laid down by the Hon'ble Apex Court in Yogendra Yadav & Ors. Vs. State of Jharkhand & Anr., (2014) 9 SCC 653, whereby the Hon'ble Apex Court has held that the High Court can quash the criminal proceedings under Section 482 Cr.P.C. even though the offence alleged is non-

compoundable, if parties have amicably settled their disputes, and victim has no objection. Whereas, in the present case, the victim has all the objections to the compromise, and therefore, does not want to bring an end to the present proceedings.

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9. After hearing the learned counsel for the parties as well as perusing the record of the case alongwith the precedent law cited at the Bar, this Court is of the opinion that once the compromise has been acted upon between the parties, as the complainant has admitted receiving of the amount of Rs.13,00,000/- by the same demand draft, as aforementioned, and Rs.2,00,000/- in cash, as mentioned in the compromise, then it was incumbent upon the respondent to abide by the terms thereof. The terms of the compromise also included taking of recourse to bring an end to the present proceedings arising out of the impugned FIR.

10. Once the compromise has been arrived at between the parties so as to bring an end to the present proceedings pursuant to the impugned FIR and the compromise has also been acted upon between the parties, which resulted into payment of Rs.15,00,000/-, as agreed between the parties, then it was not open for the respondent to step back and say that he is not agreeable to the compromise. The complainant is an astute businessman, who with open eyes has accepted the terms of the compromise, so as to bring an end to the present proceedings, and in lieu of that, loan amount of Rajasthan Financial Corporation was discharged by the present petitioner as well as an amount of Rs.15,00,000/- was also paid.

11. This Court is thus of the opinion that after the aforementioned compromise, if the present proceedings are allowed to continue, then it would amount to an abuse of the process of law at the hands of the complainant.

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12. In light of the aforesaid discussion and the precedent laws cited by learned counsel for the petitioner, the present misc.

petition is allowed and FIR No.456/2012 dated 12.12.2012 registered at Police Station, Udaimandir, Jodhpur and the entire proceedings pursuant thereto are quashed and set aside. The stay application also stands disposed of.

(DR. PUSHPENDRA SINGH BHATI)J. Skant/-